

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #07	CCRB Case #: 201602482	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/17/2016 1:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/17/2017	Precinct: 84		
Date/Time CV Reported Fri, 03/18/2016 12:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/24/2016 11:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Sonia Belardo	26587	941259	084 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT William Huang	1344	941918	084 PCT
2. POF Donesha Nelson	23760	931849	084 PCT
3. POM Cleve Patrick	15605	927326	084 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Sonia Belardo	Abuse: Police Officer Sonia Belardo refused to provide her name and shield number to § 87(2)(b)	A . Substantiated

Case Summary

On March 18, 2016, § 87(2)(b) filed this complaint with IAB on behalf of her § 87(2)(b) daughter, § 87(2)(b) § 87(2)(b) who is a School Safety Agent with the NYPD, did not witness this incident. The CCRB received this case on March 24, 2016.

On March 17, 2016, at approximately 1 p.m., § 87(2)(b) was involved in a physical altercation with other students inside the cafeteria at § 87(2)(b), in Brooklyn. PO Sonia Belardo, Sgt. William Huang, PO Donesha Nelson, and PO Cleve Patrick, from the 84th Precinct, responded to the school. § 87(2)(b) was placed in a guidance suite, along with other students, including § 87(2)(b) and § 87(2)(b). § 87(2)(b) asked PO Belardo for her name and shield number. PO Belardo allegedly ignored § 87(2)(b)'s request, and refused to provide her information to § 87(2)(b) (**Allegation A**). A Juvenile Report was filled out for § 87(2)(b) as a result of this incident.

Mediation, Civil, and Criminal Histories

This case was eligible for mediation. However, § 87(2)(b) declined to mediate. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] A Notice of Claim Request was submitted with the New York City Comptroller's Office on June 2, 2016 (Board Review 02). That request is still pending.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 03).
- This is § 87(2)(b)'s first CCRB complaint (Board Review 04).
- PO Belardo has been a member of the NYPD for nine years. PO Belardo has been the subject of one prior allegation, for a vehicle search, which was exonerated.

Potential Issues

- In her in-person statement, § 87(2)(b) alleged that § 87(2)(b) the Principal of the school, as well as § 87(2)(b) the school's Dean, were both present at the time that she requested PO Belardo's name and shield number. The CCRB contacted § 87(2)(b) and § 87(2)(b) as well as § 87(2)(b) the Assistant Principal of the school, via telephone. All three individuals confirmed that they had stepped outside the room at the time that § 87(2)(b) was handcuffed, and none of the individuals were able to confirm or disprove § 87(2)(b)'s allegation. Therefore, in-person statements from these individuals were not obtained.
- § 87(2)(b) and § 87(2)(b) were not contacted for statements, § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Sonia Belardo refused to provide her name and shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) asked PO Belardo for her name and that PO Belardo did not verbally provide it to § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that, while Sgt. Huang was behind her placing the handcuffs on, PO Belardo stood approximately one foot in front of her, facing her. At this time, § 87(2)(b) asked PO Belardo for her name and shield number. PO Belardo allegedly ignored the request and made no effort to supply § 87(2)(b) with the information. § 87(2)(b) allegedly asked PO Belardo two additional times for her name and shield number, but PO Belardo still did not provide it. § 87(2)(b) proceeded to ask other people in the room for PO Belardo's information, and eventually received it from § 87(2)(b) who had PO Belardo's name on a summons that was issued to her in regards to the aforementioned school fight (Board Review 05).

§ 87(2)(b) a School Safety Agent (SSA) assigned to the school, was in the guidance suite and witnessed the incident. § 87(2)(b) was disruptive and disrespectful to officers; she commented that Sgt. Huang, an Asian male, had "slanted eyes," and she made remarks to PO Belardo about her hair. She was generally disruptive and disrespectful towards the officers. § 87(2)(b) asked PO Belardo once for her name. PO Belardo turned towards § 87(2)(b) and stood in front of her, approximately two feet away. PO Belardo did not verbally answer § 87(2)(b)'s request, nor did she make any gesture towards her shield or nameplate, which was displayed on the outside of her uniform. Through the course of the interaction, PO Belardo stood in front of § 87(2)(b) for approximately five to ten minutes, facing her from approximately two feet away. After her initial request to PO Belardo, § 87(2)(b) then asked § 87(2)(b) to spell the officer's name for her. (Board Review 06).

PO Belardo acknowledged that § 87(2)(b) asked for her name one time, not three times as § 87(2)(b) alleged. PO Belardo, who was less than three feet away from § 87(2)(b) did not verbally provide her information because § 87(2)(b) initially refused to answer PO Belardo's questions regarding the fight in the cafeteria and was screaming and cursing at everyone in the room. However, PO Belardo contended that she did gesture with her hand toward her nameplate and shield while standing within view of § 87(2)(b). Additionally, PO Belardo alleged that she told § 87(2)(b) that her information would be on the report. § 87(2)(b) did not make any indication that she could not see the nameplate, nor did she make additional requests for PO Belardo's information (Board Review 07).

Police officers are required to courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests them to do so. NYPD Patrol Guide, Section 203-09 (Board Review 08).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
[Redacted]
[Redacted] It is therefore recommended that **allegation A** be closed
as **substantiated**.

Squad: 7

Investigator: _____ Frank Montgoris _____
Signature Print Date

Squad Leader: _____ Diana Murray _____
Title/Signature Print Date

Reviewer: _____ _____
Title/Signature Print Date